

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Roberto Tavel	Team: Bias Squad #02	CCRB Case #: 202301290	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 02/14/2023 12:12 AM	Location of Incident: East Gun Hill Road and § 87(2)(b)	18 Mo. SOL 8/14/2024	Precinct: 49
Date/Time CV Reported Tue, 02/14/2023 1:25 AM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Tue, 02/14/2023 1:25 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Pedro Reyes	16408	958000	049 PCT
2. PO Thor Stone	24103	969378	047 PCT
3. PO Pedro Herrera	05346	960667	047 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Brandon Colon	24193	968337	049 PCT
2. PO Eric Acosta	12406	963355	049 PCT
3. SGT Brian Vanduzer	03685	955618	049 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Thor Stone	Abuse: Police Officer Thor Stone stopped the vehicle in which § 87(2)(b) was an occupant.	§ 87(2)(b)
B . PO Pedro Herrera	Abuse: Police Officer Pedro Herrera stopped the vehicle in which § 87(2)(b) was an occupant.	§ 87(2)(b)
C . PO Thor Stone	Abuse: Police Officer Thor Stone questioned § 87(2)(b)	§ 87(2)(b)
D . PO Thor Stone	Abuse: Police Officer Thor Stone frisked § 87(2)(b)	§ 87(2)(b)
E . PO Pedro Herrera	Abuse: Police Officer Pedro Herrera searched the vehicle in which § 87(2)(b) was an occupant.	§ 87(2)(b)
F . PO Pedro Herrera	Abuse: Police Officer Pedro Herrera searched the vehicle in which § 87(2)(b) was an occupant.	§ 87(2)(b)
G . PO Pedro Reyes	Abuse: Police Officer Pedro Reyes interfered with § 87(2)(b) use of a recording device.	§ 87(2)(b)
H . PO Thor Stone	Abuse: Police Officer Thor Stone took law enforcement action based upon actual or perceived race.	§ 87(2)(b)
I . PO Pedro Herrera	Abuse: Police Officer Pedro Herrera took law enforcement action based upon actual or perceived race.	§ 87(2)(b)

Case Summary

On February 14, 2023, § 87(2)(b) filed this complaint at the 49th Precinct stationhouse (BR 01).

At approximately 12:00 a.m. on February 14, 2023, § 87(2)(b) had just finished eating her birthday dinner with her family and her boyfriend, § 87(2)(b) at § 87(2)(b) which is located § 87(2)(b) East Gun Hill Road, in the Bronx. After dinner, § 87(2)(b) went with § 87(2)(b) to get cranberry juice from a store called the “Smoke Shop” at 1359 East Gun Hill Road. § 87(2)(b) drove § 87(2)(b) vehicle to the Smoke Shop, approximately two minutes away from § 87(2)(b). He legally parked the vehicle in front of the Smoke Shop and went inside to get juice. After returning to the vehicle, he began driving to § 87(2)(b) home. Approximately 30 seconds later, Police Officers Thor Stone and Pedro Herrera, both assigned to the Bronx Robbery Task Force, initiated a stop of § 87(2)(b) car (**Allegations A and B – Abuse of Authority – § 87(2)(g)** § 87(2)(b)).

Upon stopping § 87(2)(b) vehicle, PO Stone and PO Herrera ordered § 87(2)(b) and § 87(2)(b) out of the car. PO Stone asked § 87(2)(b) “You got anything on you you’re not supposed to have?” (**Allegation C – Abuse of Authority – § 87(2)(g)** PO Stone then frisked § 87(2)(b) (**Allegation D – Abuse of Authority – § 87(2)(g)** § 87(2)(b)). Meanwhile, PO Herrera searched § 87(2)(b) vehicle (**Allegations E and F – Abuse of Authority – § 87(2)(g)** § 87(2)(b) attempted to record the incident on her phone when PO Pedro Reyes of the 49th Precinct’s Neighborhood Safety Team, who arrived on scene as backup, removed the phone from her hand (**Allegation G – Abuse of Authority – § 87(2)(g)** § 87(2)(b)).

Neither § 87(2)(b) nor § 87(2)(b) were arrested or issued any summonses.

§ 87(2)(b) alleged that § 87(2)(b) was racially profiled during the incident (**Allegations H and I – Abuse of Authority – § 87(2)(g)** § 87(2)(b)).

The investigation received dashcam footage from PO Stone and PO Herrera’s police vehicle and body-worn camera footage from PO Stone, PO Herrera, PO Reyes, and witness officers PO Brandon Colon, PO Eric Acosta, and Sgt. Brian Vanduzer (BR 02).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Thor Stone stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation (B) Abuse of Authority: Police Officer Pedro Herrera stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation (C) Abuse of Authority: Police Officer Thor Stone questioned § 87(2)(b) § 87(2)(b).

Allegation (D) Abuse of Authority: Police Officer Thor Stone frisked § 87(2)(b) § 87(2)(b).

i. Civilians' Accounts

The investigation was unable to contact § 87(2)(b) (BR 03).

§ 87(2)(b) stated in her CCRB interview (BR 04) that, at approximately 12:00 a.m. on February 14, 2023, she had just finished eating her birthday dinner with her family and her boyfriend, § 87(2)(b) at § 87(2)(b) which is located at § 87(2)(b) in the Bronx. Neither § 87(2)(b) nor § 87(2)(b) consumed any alcohol during the dinner or on the night of the incident.

After finishing dinner, § 87(2)(b) mother and cousin decided they would walk back to their home located at § 87(2)(b) where § 87(2)(b) also lives. Instead of walking home with her mother and cousin, § 87(2)(b) went with § 87(2)(b) to get cranberry juice from a store called the “Smoke Shop” at 1359 East Gun Hill Road.

Because § 87(2)(b) was wearing high heels, she asked § 87(2)(b) to drive her car, a black BMW 3 series with legal tints. The vehicle is owned by § 87(2)(b) and registered under her name. § 87(2)(b) drove § 87(2)(b) vehicle to the Smoke Shop, approximately two minutes away from § 87(2)(b). He parallel parked the vehicle legally in front of the Smoke Shop and told § 87(2)(b) he would go inside to get her juice. Before he exited the vehicle, § 87(2)(b) told § 87(2)(b) that there was a police car behind them. She looked in the rearview mirror and saw an unmarked black sedan parallel parked one car length behind theirs. The police vehicle had no lights or sirens activated. § 87(2)(b) had not seen the police vehicle before § 87(2)(b) pointed it out to her and did not know whether § 87(2)(b) had seen it earlier. She told § 87(2)(b) not to worry about the vehicle since they had done nothing wrong and it did not appear to be stopping them.

§ 87(2)(b) went into the store and returned to the driver’s seat approximately three minutes later with the juice. He began driving back to § 87(2)(b) home and the police vehicle followed. The police vehicle did not activate lights or sirens and drove directly behind their car. When § 87(2)(b) reached the intersection of East Gun Hill Road and § 87(2)(b) approximately 30 seconds after leaving the store, he activated his left turn signal to make a left onto § 87(2)(b). As soon as § 87(2)(b) activated his turn signal, the police vehicle turned on its lights and sirens. § 87(2)(b) made a left turn onto § 87(2)(b) stopped the vehicle, and turned the ignition off directly in front of § 87(2)(b). The police vehicle stopped behind it.

PO Herrera, who was in the driver’s seat of the police vehicle, opened his door and began yelling, “Put the car in park, turn the car off, take your foot off the brake!” According to § 87(2)(b) the car was already off and in park, but because of the automatic nature of the vehicle, the car’s lights stay on until the driver double clicks the off button.

At that moment, a second unmarked black sedan pulled in front of § 87(2)(b) vehicle with its lights and sirens activated. PO Colon exited and immediately approached § 87(2)(b) side of the vehicle. PO Stone yelled, “Roll down all the windows” and § 87(2)(b) complied, rolling down the front and back windows of the vehicle. PO Herrera told

§ 87(2)(b) and § 87(2)(b) to exit the vehicle.

§ 87(2)(b) and § 87(2)(b) both complied. PO Reyes directed § 87(2)(b) and § 87(2)(b) to go to the back of the vehicle, where they stood near the trunk. An unknown officer then apparently asked § 87(2)(b) if they could search the vehicle. § 87(2)(b) did not hear this request because she was interacting with PO Reyes about her cell phone. She was not certain of § 87(2)(b) reply.

PO Herrera entered and searched both the front and back seat areas of § 87(2)(b) vehicle. PO Herrera's search of § 87(2)(b) vehicle is discussed below under **Allegation E.** § 87(2)(b) could not see the details of the search because she was told to stand near the trunk and face the opposite direction of the rest of the car. Nothing was recovered during this search.

PO Reyes approached § 87(2)(b) again and said that he knew her brothers, § 87(2)(b) and § 87(2)(b). § 87(2)(b) told the investigation that her brothers are 'well known' in the precinct and have criminal records. Both brothers lived with § 87(2)(b) and § 87(2)(b). Neither brother was wanted for any criminality as far as § 87(2)(b) was aware.

After searching the vehicle, the officers walked § 87(2)(b) back to the driver's seat of the car and told him they had stopped him because he ran a stop sign at East Gun Hill Road and Sexton Place. § 87(2)(b) stated that she remembers the stop sign and is certain that § 87(2)(b) did not run it, but she did not say this to the police.

§ 87(2)(b) asked the officers for their names and shield numbers, which they provided. The officers told § 87(2)(b) that she and § 87(2)(b) were free to leave. The police then reentered their vehicles and left the location. Neither § 87(2)(b) nor § 87(2)(b) was provided with any summonses and no arrests took place.

§ 87(2)(b) alleged that § 87(2)(b) was racially profiled during the incident. "They saw a Black man with braids, driving a BMW, wearing a puffy jacket and made some assumptions," she stated.

ii. Officers' Accounts

PO Stone stated in his CCRB interview (**BR 05**) that, on February 14, 2023, at around 12:12 a.m., he and PO Herrera were on patrol in an unmarked black sedan when they observed a heavily tinted black sedan double parked. PO Herrera was driving while PO Stone sat in the passenger seat. PO Stone stated that he could immediately tell the car's tints were illegal but could not recall where the vehicle was double parked. He did not remember whether the vehicle was on or off nor whether he observed any passenger in the car. Because the vehicle was double parked and heavily tinted, he and PO Herrera began observing the vehicle as it departed the location. PO Stone could not recall how long he observed the vehicle before it drove away. When it drove off, it "peel[ed] off at a significant rate of speed," failed to stop at approximately two stop signs, and made "several" turns. PO Stone could not say approximately how fast the car was driving, where

these stop signs were located, nor where the car made its turns. The vehicle then pulled over in front of a store, parked legally, and § 87(2)(b) exited the vehicle to go into the store. The officers also stopped to observe.

PO Stone initially could not recall why he and PO Herrera did not choose to stop § 87(2)(b) at this time, when his vehicle was parked (BR 05). PO Stone clarified that § 87(2)(b) “moved to this... location at the store very rapidly... and exited... very abruptly running in, which led us to observe the situation further.” Because of § 87(2)(b) speed of travel and “the manner in which he exited the vehicle into the store,” PO Stone “waited to see if this was potentially a criminal act.”

Once § 87(2)(b) exited the store, returned to his car, and began driving, PO Stone and PO Herrera followed him for “possibly one block,” activated their emergency lights, and pulled him over. The only conversation in PO Stone’s car during this time was that § 87(2)(b) vehicle was not “an AMG,” which is a type of car. This comment referred to the fact that PO Stone’s vehicle could not keep up with an AMG if it sped off. Upon stopping the vehicle, PO Stone and PO Herrera could see two heads move in § 87(2)(b) car. PO Stone and PO Herrera exited their car and began ordering § 87(2)(b) to turn off his vehicle and lower his windows. He did not immediately comply, which raised the officers’ suspicion. The officers repeated themselves. A secondary unmarked vehicle then arrived on location; it was at this point that § 87(2)(b) complied with PO Stone and PO Herrera’s commands.

At this stage, PO Stone suspected § 87(2)(b) of two VTL violations (tinted windows and reckless driving) and noted when running the plate (prior to the stop) that the vehicle’s plate number had a firearm arrest attached to it. PO Stone could not remember to whom the vehicle was registered nor the date of the arrest.

Another officer then asked § 87(2)(b) to step out of the vehicle. PO Stone, who initially approached the car’s passenger side, guided § 87(2)(b) to the rear of § 87(2)(b) vehicle and asked him whether “he had anything on him that he should not have.” § 87(2)(b) stated that he did not. Nothing about § 87(2)(b) appearance indicated that he was armed. PO Stone then asked, “Can I check?” without informing § 87(2)(b) of his right to refuse consent to a search. PO Stone said to the CCRB that he believed § 87(2)(b) reply was, “Sure.” The officer stated that he perceived this reply to refer to a search of § 87(2)(b) person and/or the vehicle as PO Stone “did not specify” whether he was asking to check the vehicle or § 87(2)(b) person. PO Stone then frisked § 87(2)(b) around his waistband and jacket without entering his pockets. The only purpose of this frisk was to determine whether § 87(2)(b) was armed; he was not. PO Stone observed officers (he could not remember which officers) searching § 87(2)(b) vehicle. Aside from § 87(2)(b) reply of “sure,” PO Stone could not recall whether § 87(2)(b) communicated that officers could search the vehicle.

Aside from PO Herrera, PO Stone did not know the other officers who appeared on scene, though he specified that there was at least one other officer. To PO Stone’s knowledge, the car search did not uncover any evidence of criminality. He did not know the basis for that search.

PO Stone then asked for § 87(2)(b) ID, but § 87(2)(b) did not have it. PO Stone therefore took § 87(2)(b) name orally. During his interaction with § 87(2)(b) PO Stone requested that § 87(2)(b) passenger, § 87(2)(b) remain at the rear of the car. § 87(2)(b) was “agitated”—very vocal and very loud—throughout the interaction while § 87(2)(b) was calm.

At this point, upon conferral with PO Herrera, PO Stone determined that this incident “was nothing beyond the violations.” PO Stone and PO Herrera allowed § 87(2)(b) to return to his vehicle, explained the reason for the stop, offered business cards, stated their names and shield numbers orally, and the incident concluded. PO Stone and PO Herrera did not give § 87(2)(b) a summons because, after § 87(2)(b) explanation that “they wanted cranberry juice,” PO Stone “exercised discretion.” PO Stone denied that § 87(2)(b) race was a factor in the stop.

PO Herrera’s CCRB statement contained significant overlap with PO Stone’s (**BR 06**). PO Herrera added that he heard § 87(2)(b) “engine backfire” when § 87(2)(b) initially started driving. He also clarified that he did not believe it was feasible to stop § 87(2)(b) when he parked by the Smoke Shop. When asked why a stop would not be feasible at this time, PO Herrera stated, “He has two... traffic infractions he committed in my presence. And then the speed, these are all moving violations. It didn’t seem feasible for me to stop him while he’s in the store... If I’m stopping you for vehicle infractions, you should be in your vehicle.” Despite the numerous violations that PO Herrera cited in his interview, he stated that he was not concerned that § 87(2)(b) would pose a hazard to other drivers or pedestrians if he continued to drive after he parked by the store.

PO Herrera also explained that he was the officer who searched § 87(2)(b) vehicle. He searched the driver’s side center console, the glove box, the “passenger side, rear driver, rear passenger seat, under the driver’s seat, and under the passenger seat and in the door frames of the driver and [front] passenger seats.” The basis for this search was that § 87(2)(b) “voluntarily told us we could search his vehicle.” PO Herrera also stated that he did not hear any conversation between § 87(2)(b) and PO Stone about consent to search. When asked how PO Herrera learned of § 87(2)(b) consent, PO Herrera stated that PO Stone “gave me the signal that we have, a signal that we usually use,” indicating that PO Herrera could search the car. PO Herrera stated that this signal was a “thumbs up,” which PO Stone gave to PO Herrera after § 87(2)(b) exited his vehicle.

The investigation also interviewed PO Reyes (**BR 07**) regarding his alleged interference with a recording device (discussed in more detail under **Allegation F**). PO Reyes explained that he and his partners, PO Acosta, PO Colon, and Sgt. Vanduzer, did not observe the violations that preceded the stop of § 87(2)(b) and only arrived on scene only because they observed PO Stone and PO Herrera initiate the stop, leading them to offer backup. No officer claimed that he had prior interaction with § 87(2)(b) or § 87(2)(b).

iii. Video of Incident

The investigation received dashcam footage from PO Stone and PO Herrera’s police vehicle and body-worn camera footage from PO Stone, PO Herrera, PO Reyes, and witness

officers PO Colon, PO Acosta, and Sgt. Vanduzer (**BR 02**).

PO Stone and PO Herrera's dashcam footage (**BR 02**, labeled 2023-02-13_2348) begins with § 87(2)(b) BMW sedan parked on the side of the street in front of the Smoke Shop. For the first minute, there is no audio. At 00:13, § 87(2)(b) walks to the driver's side of the BMW and enters the driver's seat. 20 seconds later, the BMW begins to drive away, merging with traffic after activating its left blinker. PO Stone and PO Herrera immediately begin to follow the car. At 00:55, § 87(2)(b) BMW again activates its left turn signal in anticipation of making a turn. PO Stone and PO Herrera's car immediately activates its lights and sirens, which also triggers the dashcam's audio recording to activate. PO Stone and PO Herrera's car pulls over the BMW after the BMW makes the left turn. In the police vehicle, which trails the BMW, officers begin to discuss the make and model of § 87(2)(b) car and whether the police vehicle can "keep up" with the BMW. At 01:25, the vehicles come to a stop and PO Stone and PO Herrera begin to exit. An officer can be heard giving the instruction to "roll the back windows down" and to "put the car in park." PO Stone and PO Herrera complain that the car has not been turned off and that the driver still has his foot on the brakes. They then approach the car.

PO Stone's BWC (**BR 02**, labeled 2348 (1)) offers the best view of the next stage of the interaction. At 01:30 of this BWC, PO Stone approaches § 87(2)(b) car. Meanwhile, another unmarked squad car arrives on scene and parks in front of § 87(2)(b) car.

At 01:50 of PO Stone's BWC, PO Stone walks to the driver's side of § 87(2)(b) car. § 87(2)(b) is ordered out of the car and walks to its rear. PO Stone puts his hands on § 87(2)(b) waist area to guide him toward the trunk. PO Stone asks § 87(2)(b) "You got anything on you you're not supposed to have?" § 87(2)(b) replies that he does not. PO Stone asks, "Can I check?" § 87(2)(b) then puts his arms out away from his sides in a 'T' shape. PO Stone begins to frisk § 87(2)(b). During this time, § 87(2)(b) also exits the car and approaches its rear.

At 02:40 of PO Stone's BWC, § 87(2)(b) explains to PO Stone that they had just stopped at the deli. § 87(2)(b) emphasizes that they stopped to buy cranberry juice. She says, "They think we're some other people because we're frickin black? Hang on, lemme record this shit bro." § 87(2)(b) then starts recording on her cell phone. PO Reyes puts his hand up toward her phone and attempts to grab it. He says, "You can record," but also commands her to "put the phone down." PO Reyes then takes the phone from § 87(2)(b) and puts it on top of the car's trunk. § 87(2)(b) promptly asks the officers on scene for badge numbers, which they eventually provide. Meanwhile, PO Reyes continues to tell § 87(2)(b) to put her phone down.

Approximately one minute later, PO Colon says to § 87(2)(b) "You have two brothers." § 87(2)(b) replies, "Exactly, you know who I am." PO Reyes says that he has never dealt with her.

At 04:30 of PO Stone's BWC, as PO Herrera appears to be searching the interior of § 87(2)(b) vehicle, § 87(2)(b) says, "You can check to the whole damn car, you about to find nothing." PO Herrera replies, "First and foremost, the driver said we can check the

car. You the driver?" § 87(2)(b) does not reply.

Shortly thereafter, PO Stone begins speaking with Sgt. Vanduzer and PO Herrera. PO Stone holds up his phone, which has on screen a photo of § 87(2)(b) (discussed below). PO Herrera explains to Sgt. Vanduzer, "Pretty much reckless driving. He came around, took off, blew the stop sign, made a left, blew another stop sign, parks immediately in front of the store, hops out, I'm like alright, bro."

At 06:08, an officer instructs § 87(2)(b) to have a seat in the car. PO Stone says, "we're gonna talk to § 87(2)(b) for a second and then he's gonna get back in the car." § 87(2)(b) says the officers should speak to her and § 87(2)(b) together and the officers refuse. PO Stone instructs § 87(2)(b) to step away from the vehicle so that officers can speak with him. § 87(2)(b) is then escorted by PO Stone to the driver's seat. § 87(2)(b) sits and PO Herrera states, "You can't be taking off like that. There's a stop sign over there, you gotta come to a complete stop... you also can't be double parked on a public street, alright? Do you need our information?" § 87(2)(b) replies that § 87(2)(b) already recorded their information. Officers tell § 87(2)(b) to have a good night and the interaction concludes.

iv. NYPD Documentation

The investigation requested and received one vehicle report related to the incident (**BR 08**). This report, prepared by PO Stone, states that the basis for the stop in question was a VTL infraction, citing VTL code 1110 A, Disobeyed Traffic Device – Pavement Markings. It also lists the motorist as § 87(2)(b). PO Stone claimed (**BR 05**) that the entry of this name was a paperwork mistake that he made at the time of the incident. He speculated that the name was associated with the vehicle through a linked summons, arrest, or complaint report.

PO Herrera had no memo book entry related to this incident. § 87(2)(g) PO Stone, who was the recorder during the incident, had one memo book entry § 87(2)(g) that states only that the officers conducted a car stop at 23:48 at "§ 87(2)(b) and EGH." For comments, it lists "91" (signifying that the officers took no further enforcement action) and "1871" (referencing the vehicle report number).

v. Analysis of Allegations A and B

An automobile stop is lawful when based on probable cause that a driver has committed a traffic violation. *See, e.g., People v. Hinshaw*, 35 N.Y.3d 427, 430 (N.Y. 2020) (**BR 28**). PO Stone and PO Herrera cited multiple violations in their CCRB interviews that they alleged provided some basis for the stop. § 87(2)(b) denied that § 87(2)(b) committed any violations.

PO Stone and PO Herrera each stated that § 87(2)(b) vehicle was double parked, heavily tinted, drove at a speed that exceeded the speed limit, and failed to come to a complete stop at approximately two stop signs. PO Stone could not remember where the vehicle was double parked, whether the vehicle was on or off when officers began

observing it, how long officers observed the vehicle before it drove away at a high rate of speed, how fast the car was driving, or where the stop signs in question were located. PO Herrera did not allude in his CCRB statement to § 87(2)(b) vehicle being double parked (**BR 06**). Like PO Stone, he could not say how fast the car was driving, though he was certain it was over the speed limit of 25 MPH.

PO Stone's vehicle report, however, cites only a violation of "VTL code 1110 A, Disobeyed Traffic Device – Pavement Markings." § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Meanwhile, in discussing the incident on BWC (**BR 02**), PO Herrera states to Sgt. Vanduzer that § 87(2)(b) engaged in reckless driving and states to § 87(2)(b) "You can't be taking off like that. There's a stop sign over there, you gotta come to a complete stop... you also can't be double parked on a public street, alright?" Neither PO Stone nor PO Herrera makes any mention on BWC of illegally tinted windows.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

the alleged VTL offenses occurred before dashcam footage or officer BWC activated, this footage (**BR 02**) does not resolve the discrepancy between PO Stone and PO Herrera's accounts and that of § 87(2)(b) § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

vi. Analysis of Allegations C and D

PO Stone's BWC (**BR 02**) shows that after § 87(2)(b) was ordered to exit his vehicle, PO

§ 87(2)(g)

“Recognizing the inherent potential for intimidation and coercion in police-initiated encounters,” New York courts have “categorically rejected... reliance on consent to validate otherwise impermissible searches when consent was given in consequence of improperly initiated police inquiry or intrusion.” *People v. Packer*, 49 A.D.3d 184, 187 (N.Y. 1st Dept. 2008) (citing *Hollman*, 79 NY2d at 191-192) (**BR 26**). To that end, “[o]nce improperly initiated police conduct is established, a directly ensuing consent to search will be deemed invalid as a matter of law.” *Id.* Thus, in *People v. Negroni*, 38 Misc. 3d 1224(A) (N.Y. Bronx Cnty. Supreme Court 2013) (**BR 27**), the Bronx County Supreme Court found that a police officer’s request for consent to search the trunk of a car was impermissible where the request immediately followed improper questioning about whether the car’s occupants possessed any weapons. § 87(2)(g)

§ 87(2)(g)

Patrol Guide Procedure 212-11 (**BR 14**) explains that an officer’s request for consent to search can only occur at or above Level II of the *De Bour* framework (i.e., when there is founded suspicion that criminality is afoot). When requesting consent to search an individual, an officer must “make clear that the search will not occur if the person does not consent.” See also Right to Know Act, NYC Administrative Code, Section 14-173 (**BR 30**). If an officer requests consent to search, the officer must document this request in a Consent Search Report. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation (E) Abuse of Authority: Police Officer Pedro Herrera searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (F) Abuse of Authority: Police Officer Pedro Herrera searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(g)

§ 87(2)(g)

PO Herrera stated that PO Stone “gave me the signal that we have, a signal that we usually use,” indicating that PO Herrera could search the car. PO Herrera stated that this signal was a “thumbs up,” which PO Stone gave to PO Herrera after § 87(2)(b) exited his vehicle. PO Herrera explained that he searched the driver’s side center console, the glove box, the “passenger side, rear driver, rear passenger seat, under the driver’s seat, and under the passenger seat and in the door frames of the driver and [front] passenger seats.”

§ 87(2)(g)

PO Stone added that he was not sure of the basis for PO Herrera’s search of the vehicle. At no point did PO Stone testify that he gestured to PO Herrera that § 87(2)(b) consented to a search.

In the absence of probable cause, it is generally unlawful for an officer to “invade the interior” of a stopped car. *People v. Carvey*, 89 N.Y.2d 707, 711 (N.Y. 1997) (**BR 29**). A person’s consent to a search provides a limited exception to that general rule. *See, e.g., Packer*, 49 A.D.3d at 186. § 87(2)(g) BWC and dashcam footage § 87(2)(g)

§ 87(2)(b) does not capture § 87(2)(b) orally consent to a search of the car, nor does it depict PO Stone give any “thumbs up” to PO Herrera.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation (G) Abuse of Authority: Police Officer Pedro Reyes interfered with
§ 87(2)(b) use of a recording device.

§ 87(2)(b) alleged that she attempted to record officers' interaction with § 87(2)(b) but that PO Reyes told her she could not record (BR 04). She stated that PO Reyes grabbed her cell phone out of her hand, stopped the recording, and gave the phone back to her.

PO Reyes said (BR 06) that as § 87(2)(b) attempted to record the interaction on her phone, she pointed her camera "with the flash towards my face." At this point, PO Reyes told her, "Listen, you gotta put the phone down." He gave this command because officers sometimes "have situations where, you know, people have stuff in their hands, and when they're acting like that, it just gets out of control." He also stated that officers have had incidents "where [a phone] could be used as an instrument." Finally, he stated that § 87(2)(b) was allowed to record, but not with the phone in her hand.

PO Reyes' BWC (BR 02, labeled 2349(1), at 02:00) confirms that, when § 87(2)(b) attempted to record, PO Reyes ordered § 87(2)(b) to put her phone down. After she refused, PO Reyes stated that she could record, but could not have anything in her hands. He then removed the phone from her hands and placed it on top of the trunk of her car. As he did so, he stated, "See, it's recording," to which § 87(2)(b) responded, "It's not recording." After leaving the phone on the rear of the car for around two minutes, § 87(2)(b) again holds the phone to record officers' badge numbers.

Patrol Guide Procedure 203-29 provides that individuals have a right to "lawfully observe and/or record police activity," which extends to public places such as streets and sidewalks (BR 16). The right may be limited "for reasons such as the safety of officers or other members of the public, or when a violation of law is committed by the individual(s) who are observing/videotaping." Members of service may not "threaten, intimidate, or otherwise discourage an observer from recording" or "intentionally block or obstruct cameras... when there is no legitimate law enforcement reason to do so."

§ 87(2)(g)

Allegation (H) Abuse of Authority: Police Officer Thor Stone took law enforcement
action based upon actual or perceived race.

Allegation (I) Abuse of Authority: Police Officer Pedro Herrera took law enforcement
action based upon actual or perceived race.

§ 87(2)(b) alleged that § 87(2)(b) was racially profiled during this incident (**BR 04**). Under *NYPD Administrative Guide Procedure 304-17*, NYPD members of service are prohibited from initiating a law enforcement action that is “motivated even in part by a person’s actual or perceived race, color, ethnicity, or national origin” (**BR 17**). Race does not have to be the sole, primary, or even predominant motivation for the law enforcement action in question to sustain an allegation of biased policing. See *United States v. City of Yonkers*, 96 F.3d 600, 611-12 (2d Cir. 1996) (**BR 18**); *Floyd v. City of New York*, 959 F.Supp.2d 540, 571 (S.D.N.Y. 2013) (**BR 18**). If the preponderance of the evidence establishes that the civilian’s race played any role in the officer’s decision making, the racial profiling allegation should be substantiated, regardless of any non-discriminatory reasons the officer gives for their actions. *Yonkers*, 96 F.3d at 612; *Raza v. City of New York*, 998 F.Supp.2d 70, 79-80 (E.D.N.Y. 2013) (**BR 18**); *Bennett v. Health Sys., Inc.*, 92 A.D.3d 29, 40 (1st Dep’t 2011) (**BR 18**).

Because racially discriminatory intent “is rarely susceptible to direct proof,” it is often established through circumstantial evidence. *Millan-Hernandez v. Barr*, 965 F.3d 140, 148 (2d Cir. 2020) (**BR 18**); *Bennett v. Health Sys., Inc.*, 92 A.D.3d 29, 40-41 (1st Dep’t 2011). Seldom is one piece of circumstantial evidence sufficient on its own to establish racially discriminatory intent. The factfinder must instead consider the “totality of the relevant facts.” *Washington v. Davis*, 426 U.S. 229, 242 (1976) (**BR 18**); *LeBlanc-Sternberg v. Fletcher*, 67 F.3d 412, 425 (2d Cir. 1995) (**BR 18**). Examples of circumstantial evidence to consider include, but are not limited to:

- i. the sequence of events leading up to the law enforcement activities at issue;
- ii. the officers’ departure from their own and/or their fellow officers’ customary practices during the incident in question;
- iii. the officers’ violation of law and/or department policies and procedures during the incident in question;
- iv. the falsity of the officers’ non-discriminatory explanations for their actions;
- v. data showing a pattern of racial disparities in the officers’ enforcement activity over time; and
- vi. officer history of prior biased acts or similar misconduct committed against persons from the complainant/victim’s racial/ethnic group.

Each of these categories of evidence is discussed below with respect to PO Stone and PO Herrera.

i. *Sequence of Events Leading up to the Challenged Law Enforcement Action*

The United States Supreme Court has held that when analyzing claims of racial discrimination, “[t]he specific sequence of events leading up to the challenged decision may shed some light on the decisionmaker’s purposes.” *Village of Arlington Heights v. Metro. Housing Dev. Corp.*, 429 U.S. 252, 267 (1977) (**BR 18**). Thus, the events leading up to a challenged law enforcement action, in combination with other circumstantial evidence, can support a finding that the officer who took the action was motivated by racial discrimination. See, e.g., *Rodriguez v. Barr*, 943 F.3d 134, 142-43 (2d Cir. 2019) (**BR 18**); *Ballew v. City of Pasadena*, 642 F.Supp.3d 1146, 1165 (C.D. Cal 2022) (**BR 18**);

Commonwealth v. Long, 152 N.E.3d 733, 739-40 (Mass. 2020) (**BR 18**); *Marshall v. Columbia Lea Reg'l Hosp.*, 345 F.3d 1157, 1169 (10th Cir. 2003) (**BR 18**). For example, evidence that an officer knew an individual's race before taking law enforcement action against the individual can support an inference that the individual's race may have played a role in the officer's decision to take such action. *See Ballew*, 642 F.Supp.3d at 1165; *Long*, 152 N.E.3d at 740 n.9; *Marshall*, 345 F.3d at 1169. In addition, evidence that the officer followed the civilian for an extended period of time prior to stopping her/him may also suggest an improper discriminatory motive for the stop. *Long*, 152 N.E.3d at 740, n.9; *Marshall*, 345 F.3d at 1169.

§ 87(2)(g)

PO Stone and PO Herrera (**BR 05, 06**) both remembered that they were on patrol when they observed a heavily tinted black sedan double parked. Because the vehicle was double parked and heavily tinted, PO Stone and PO Herrera began observing the vehicle as it departed the location. When it drove off, it allegedly did so at a high rate of speed and failed to stop at approximately two stop signs. Both subject officers described this conduct as reckless driving. The vehicle then pulled over in front of a store, parked legally, and § 87(2)(b) exited the vehicle to go into the store.

Despite § 87(2)(b) stopping his car and exiting in the presence of PO Stone and PO Herrera (during which time the officers almost certainly were able to observe his race, *see* dashcam footage, **BR 02**) and despite the fact that § 87(2)(b) had allegedly engaged in reckless driving, the officers did not initiate a stop at this time. Instead, they continued to observe § 87(2)(b) § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

which the court in *Floyd v. City of New York* found was evidence of racial bias (**BR 18**). *See Floyd*, 959 F.Supp.2d at 661 n.760; *see also People v.*

Carillo, 9 A.D.3d 333, 334 (1st Dep’t 2004) (“The prosecutor’s explanation that he challenged this juror because he ‘just did not get a good feel from her’... is the type of vague, non-specific and, thus, highly suspicious reason that we have previously held leads to an inescapable inference of discriminatory motive”). Moreover, dashcam footage captures § 87(2)(b) return to his vehicle from the store; he does so calmly and with a grocery bag in his hand, suggesting innocuous behavior consistent with § 87(2)(b) statement that he was buying juice for § 87(2)(b). Still, PO Stone and PO Herrera did not execute the car stop at that time.

§ 87(2)(g)

ii. Subject Officers’ Departure from Customary Practices

A police officer’s departure from his or her agency’s customary practices in a given situation can also support a finding that the officer acted with racially discriminatory intent. *Village of Arlington Heights*, 429 U.S. at 267 (**BR 18**); *Moore v. MTA*, 999 F.Supp.2d 482, 497-98 (S.D.N.Y. 2013) (**BR 18**); *Doe v. Village of Mamaroneck*, 462 F.Supp.2d 520, 548-49 (S.D.N.Y. 2006) (**BR 18**).

PO Stone stated in his CCRB interview that the Bronx Robbery Task Force is responsible for addressing “crime conditions in the Bronx,” though he claimed it is not focused on any particular crime conditions (**BR 05**). PO Herrera similarly explained that the Bronx Robbery Task Force addresses “neighborhood safety” and “quality of life conditions” (**BR 06**). PO Herrera clarified that around the time of the incident, there were “a lot of robberies going on throughout the Bronx and throughout the city,” which catalyzed the creation of the Task Force. This unit was relatively new at the time of the incident—PO Stone had recently been assigned to it and PO Herrera was merely filling in for a colleague who was off that day (**BR 05, 06**).

Because the Bronx Robbery Task Force was relatively new at the time of the incident and because neither officer had significant history working with the unit, data on the officers’ stops do not shed light on whether the officers customarily made traffic stops while working that assignment. However, PO Herrera’s characterization of the unit as one—like its name suggests—designed to address robbery-related crime calls into question whether this assignment customarily involves enforcement of traffic laws. As explained in *Commonwealth v. Long*, “traffic stops initiated by officers whose primary assignment does not involve the enforcement of traffic laws might warrant particular scrutiny” for a possible racially discriminatory motive. *Long*, 152 N.E.3d at 740 n.8. § 87(2)(g)

iii. Officers’ Violation of Law and/or Department Policies and Procedures

§ 87(2)(g)

§ 87(2)(g) The fact that a law enforcement action was taken in violation of the law (e.g., investigatory stops and frisks made without

reasonable suspicion) can, in combination with other circumstantial evidence, support a finding that such action was racially motivated. *Rodriguez*, 943 F.3d at 143 (BR 18); *Millan-Hernandez*, 965 F.3d at 148 (BR 18); *Hassan v. City of N.Y.*, 804 F.3d 277, 296 n.7 (3d Cir. 2015) (BR 18). Similarly, actions taken in violation of police department policy may suggest that the subject officer acted with a discriminatory purpose. See *Rodriguez*, 943 F.3d at 142 (BR 18); *Long*, 152 N.E.3d at 740 n.12 (BR 18).

§ 87(2)(g)

§ 87(2)(g)

As discussed above, *Patrol Guide Procedure 212-11* (BR 14) explains that, when requesting consent to search an individual, an officer must “make clear that the search will not occur if the person does not consent.” See also Right to Know Act, N.Y.C. Administrative Code Section 14-173 (BR 30). If an officer requests consent to search, the officer must also document this request in a Consent Search Report.

§ 87(2)(g)

neither PO Stone nor PO Herrera prepared any Consent Search Report (BR 15), § 87(2)(g)

§ 87(2)(g)

iv. *Falsity of Officers’ Non-Discriminatory Explanations for Their Actions*

The falsity of a law enforcement officer’s race neutral explanation for their actions can also support a finding that the officer was trying to conceal a discriminatory motive. *Turkmen v. Hasty*, 789 F.3d 218, 256-57 (2d Cir. 2015), rev’d on other grounds, 137 S.Ct. 1843 (2017) (BR 18); *Rodriguez*, 943 F.3d at 143 (BR 18).

§ 87(2)(g)

PO Stone and PO Herrera each

stated that § 87(2)(b) vehicle was double parked, heavily tinted, drove at a speed that exceeded the speed limit, and failed to come to a complete stop at approximately two stop signs. However, in his interview with the CCRB, PO Stone could not state where § 87(2)(b) alleged violations occurred, nor could he recall important details of the incident such as § 87(2)(b) rate of speed, whether § 87(2)(b) vehicle was on or off when officers began observing it, and how long officers observed § 87(2)(b) vehicle before it allegedly sped off. PO Herrera in his interview also could not say how fast § 87(2)(b) was driving § 87(2)(g)

Meanwhile, the vehicle report (BR 08) prepared by PO Stone makes no reference to § 87(2)(b) alleged parking infraction, his speeding violation, or his car's tinted windows. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

v. *Data Showing a Pattern of Racial Disparities in Officers' Enforcement Activity*

Data showing a pattern of racial disparities in a police officer's enforcement activity over time are widely recognized as important circumstantial evidence to consider in a "totality of the relevant facts" analysis of an allegation of racial profiling against that officer. See, e.g., *Marshall v. Columbia Lea Reg'l Hosp.*, 345 F.3d 1157, 1168 (10th Cir. 2003); *Anderson v. Cornejo*, 284 F.Supp.2d 1008, 1050 (N.D. Ill. 2003); *Johnson v. Holmes*, 782 Fed.Appx. 269, 281-82 (4th Cir. 2019); *Long*, 152 N.E.3d 733, 739-40 (Mass. 2020) (**BR 18**). For example, data that show that:

- (a) the racial composition of persons stopped by the subject officer in the years/months preceding the incident in question varied significantly from the racial composition of the residential population near the geographic areas patrolled by that officer, *Ballew v. City of Pasadena*, 642 F. Supp. 3d 1146, 1170 (C.D. Cal. 2022); *Long*, 152 N.E.3d at 745-46, and
- (b) the racial composition of individuals stopped by the subject officer varied significantly from the racial composition of individuals stopped by other officers working in similar assignments and locations and at similar times of day, *Johnson*, 782 Fed.Appx. at 281-82; *United States v. Mesa-Roche*, 288 F.Supp.2d 1172, 1188-90 (D. Kan. 2003) (**BR 18**); Greg Ridgeway and John MacDonald, *Methods for Assessing Racially Biased Policing*, 13-18 (RAND Corp. 2011), 8 available <https://www.rand.org/pubs/reprints/RP1427.html> (**BR 18**)

can, when combined with other pieces of circumstantial evidence, support a finding that the subject officer acted with discriminatory intent during the specific stop under investigation.

The CCRB's Racial Profiling and Bias-Based Policing Investigations (RPBP) Unit requested from the NYPD all vehicle reports completed by PO Stone and PO Herrera, and all other officers assigned to these officers' commands and tours for the year preceding the vehicle stop of § 87(2)(b) (**BR 20**). The RPBP Unit's Chief Data Scientist and Data Analyst then analyzed these data to determine whether any racially disparate patterns were present in PO Stone and PO Herrera's vehicle stop activity. That information was compiled and evaluated in a memorandum created by the Chief Data Scientist and Data Analyst (**BR 21**).

The RPBP Unit's Chief Data Scientist and Data Analyst also analyzed the racial and ethnic composition of the subject officers' assignment boundaries and mapped the officers' prior vehicle stops (**BR 21**).

The Chief Data Scientist and Data Analyst's memorandum (hereinafter, "the memo") explains that PO Stone completed 72 vehicle reports between February 14, 2022, and February 14, 2023. During that same period, PO Herrera completed 78 vehicle reports. These numbers of vehicle reports were higher than the number completed by 92% and 93%, respectively, of the 263 members of service who were assigned to PO Stone and PO Herrera's command (command 47) and completed vehicle reports during this period.

Most of PO Stone and PO Herrera's vehicle stops were of Black (88% and 81%,

respectively) and male (86% and 91%, respectively) drivers. A higher percentage of PO Herrera's vehicle stops was of Black drivers relative to similarly situated vehicle stops.¹ In the area where the incident under investigation occurred—defined as the 47th precinct along with all Census block groups² that intersect with a 1-mile border around the 47th precinct³—41% of the residential population identifies as non-Hispanic or Hispanic Black.^{4,5} “Where, as here, ‘the relevant roadways are urban residential roads, as opposed to an interstate highway, we have much greater confidence in the accuracy of residential demographics from United States Census data as representative of those making use of the residential roads.’” *Ballew*, 642 F.Supp.3d at 1170 (citing *Long*, 485 Mass. at 733) (**BR 18**). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

The memo also notes that PO Stone and PO Herrera's vehicle stops resulted in summonses in only 2% and 11% of stops, respectively. These rates were far lower than those reflected in similarly situated reports (55% and 52%, respectively). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Finally, in analyzing PO Stone's 72 vehicle reports between February 14, 2022, and February 14, 2023, the memo shows that PO Stone conducted a car search in 17.46% of the 63 reported stops of Black motorists (**BR 21**). Meanwhile, PO Stone did not conduct a single car search in any of the 9 combined stops of motorists listed as White, White Hispanic, or other. In PO Herrera's 63 stops of Black motorists, he also conducted a car search 17.46% of the time. Meanwhile, he searched 7.14% of the 14 vehicles driven by motorists he identified as White Hispanic. He did not search the 1 stopped vehicle driven by a motorist he identified as Asian/Pacific Islander. While these sample sizes of stopped

¹ The memo defines similarly situated vehicle stops as stops that occurred with time of day (using 2-hour time blocks), day of the week, month, and police sector combinations that match such combinations among the subject officer's vehicle stops. For example, if the subject officer conducted one vehicle stop in November 2022 on a Tuesday at 23:24 hours in sector 1A, the memo includes vehicle stops in the comparison group that were reported to have been conducted by members of service in the subject officer's command between 22:00 and 00:00 hours on any Tuesday in November 2022 in sector 1A.

² Block groups are statistical, geospatial divisions created by the United States Census Bureau and typically contain between 600 and 3,000 people.

³ Since the 47th precinct borders Westchester County, this includes the relevant block groups in Westchester County.

⁴ American Community Survey 2021 (5-Year Estimates)

⁵ 26% of the residential population identifies as Hispanic other, and it is possible that some members of this population appear to be Black in the context of the United States. However, if this were true of all people in the area who identify as Hispanic other, 67% of the residential population in the area where the incident occurred would appear to be Black. In the 47th precinct alone, 64% of the residential population identifies as non-Hispanic or Hispanic Black, and 17% identifies as Hispanic other.

non-white motorists are not large enough to draw statistically meaningful conclusions, the data show that PO Stone and PO Herrera searched vehicles of stopped Black motorists more often than they did of stopped non-Black motorists. § 87(2)(g)

§ 87(2)(g)

vi. *Officer History of Prior Biased Acts or Similar Misconduct*

“Proof of prior discriminatory conduct” by an officer against members of the complainant’s demographic group is relevant to the officer’s motive and intent at the time of the alleged misconduct, *Open Housing Ctr v. Kings Highway Realty*, 1993 U.S. Dist. LEXIS 15927, *18-21 (E.D.N.Y. Nov. 8, 1993), especially if the prior conduct “is similar in nature to that experienced by the [complainant].” *Zubulake v. UBS Warburg, LLC*, 382 F.Supp.2d 536, 544. (S.D.N.Y. 2005); *Todaro v. Siegel, Fenchel & Peddy, P.C.*, 2008 U.S. Dist. LEXIS 17894, *13 (S.D.N.Y. Mar. 3, 2008) (**BR 18**).

The CCRB requested and received from the NYPD PO Stone and PO Herrera’s IAB profiling and EEO complaint histories, lawsuit histories, and Central Personnel Index search reports (CPI reports) (**BRs 22, 23**). The NYPD indicated that their search for prior IAB and EEO complaints made against the three subject officers yielded no results (**BRs 22**) outside of the incident in question, which also generated an IAB investigation with the log number 2023-5431. Review of the subject officers’ CPI reports revealed no relevant substantiated allegations (**BR 22**). PO Stone and PO Herrera also have no relevant histories of CCRB allegations in cases resembling this one.

The investigation’s review of the subject officers’ lawsuit histories provided by the NYPD (**BR 24**) revealed PO Stone to be named in the matter of *Pinnock, Kimberly, et al vs City of New York, et al* (**BR 25**), which involved allegations that PO Stone stopped, searched, assaulted, and detained Plaintiff. This case resulted in a settlement of \$180,000. PO Herrera was not listed as having prior lawsuits.

vii. *Summary of Evidence and Recommendation*

§ 87(2)(g)

- 1) PO Stone and PO Herrera statements to the CCRB regarding the basis for the stop of § 87(2)(b) were inconsistent with the vehicle report prepared by PO Stone;

- 2) § 87(2)(g)

- 3) § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- 4) § 87(2)(g) [REDACTED]
- 5) § 87(2)(g) [REDACTED]
- 6) § 87(2)(g) [REDACTED]
- 7) § 87(2)(g) [REDACTED]
[REDACTED]
- 8) Neither PO Stone nor PO Herrera prepared any Consent Search Report;
- 9) Vehicle reports prepared by PO Stone and PO Herrera in the year prior to the incident demonstrate a pattern of stopping dramatically disproportionate numbers of Black motorists relative to that group's representation in the residential population of the area under investigation;
- 10) Vehicle reports prepared by PO Stone and PO Herrera in the year prior to the incident show that PO Stone and PO Herrera summonsed only 2% and 11%, respectively, of motorists they stopped, § 87(2)(g) [REDACTED]
[REDACTED]
- 11) Vehicle reports prepared by PO Stone and PO Herrera in the year prior to the incident show that, during traffic stops, PO Stone and PO Herrera each searched the cars of Black motorists more often than they did of non-Black motorists.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) [REDACTED] has been a party.
- PO Stone has been a member of service for 4 years and has been a subject in 1 CCRB complaint and 1 allegation, which was not substantiated. § 87(2)(g) [REDACTED]
[REDACTED]
- PO Herrera has been a member of service for 8 years and has been a subject in 3 CCRB complaint and 3 allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
[REDACTED]

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of May 20, 2024, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (BR 31).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED]

Squad No.: RPBP Bias
Squad 2

Investigator:	<u>/s/ Roberto Tavel</u> Signature	<u>Inv. Atty. Roberto Tavel</u> Print Title & Name	<u>5/15/24</u> Date
Squad Leader:	<u>Tessa Yesselman</u> Signature	<u>IM Tessa Yesselman</u> Print Title & Name	<u>05/16/24</u> Date
Reviewer:	<u>Bianca Victoria Scott</u> Signature	<u>RPBP Dep. Dir. Bianca Victoria Scott, Esq.</u> Print Title & Name	<u>05/19/24</u> Date